

**SYNTHETIC COUNTERFACTUAL APPELLATE BRANCH — NEVER
OCCURRED ON THE ACTUAL DOCKET — ALL FACTS AND
IDENTIFIERS ARE FICTIONAL**

Branch source B07: post-rehearing mandate route marker B07.

United States Court of Appeals for the Fourth Circuit

Mara Ellison v. Officer Nolan Rusk

No. SYN-CA4-26-CV-4104-CF-NEVER-OCCURRED

Mandate Following Rehearing Denial

Issued August 11, 2026

To the United States District Court for the Western District of Virginia:

The judgment of this Court, entered June 30, 2026, is now effective. The factual-sufficiency portion of Officer Nolan Rusk's interlocutory appeal is dismissed for lack of collateral-order jurisdiction. The district court's January 9, 2026 legal denial of qualified immunity is reversed, and the action is remanded with instructions to enter summary judgment for Rusk on Mara Ellison's remaining individual-capacity damages claim.

This mandate follows the Court's August 4 denial of Ellison's timely combined petition for panel rehearing and rehearing en banc. It issues seven days after that denial under Federal Rule of Appellate Procedure 41(b). No mandate stay is in effect on this branch, and no earlier mandate issued.

The accompanying published opinion supplies the controlling reasons and boundaries. In particular, the Court did not decide whether Ellison struck Rusk, moved toward police equipment, or only pulled from a painful wrist grasp. Qualified immunity was granted while accepting the plaintiff-favorable version solely for legal analysis. The district court shall not treat the appellate disposition as a factual finding.

Appellant may recover allowable costs in the amount later fixed through ordinary clerk procedure.

Certified Direction

The certified judgment and published opinion are incorporated into this mandate. If an abbreviated phrase here appears broader than the opinion, the opinion governs. The remand instruction disposes of the sole remaining federal damages claim against Rusk; it neither reinstates previously removed municipal defendants nor adjudicates a claim not presented in this appeal.

The mandate is effective upon issuance today. The district clerk may docket the returned cause, enter summary judgment as directed, address authorized costs, and undertake ministerial closure. No evidentiary hearing about the obstructed camera interval is necessary to carry out the immunity judgment because the Court's legal holding is dispositive even on Ellison's assumed facts.

Record custody remains unchanged except as the district and circuit clerks ordinarily coordinate return of transmitted materials. The native media need not be physically attached to this mandate. Preservation duties established below continue until the district court enters any appropriate final closure order.

This document records one counterfactual rehearing route. It does not coexist with an ordinary no-petition mandate or a mandate-stay route on the same workflow instance. The public docket number and every event stated here are fictional and are isolated from the actual appellate docket.

Issued under the seal of the Court at the direction of Chief Judge Alder and Judges Reed and March on August 11, 2026.